

Chief Justice's Court

Case :- WRIT - C No. - 60272 of 2005

Petitioner :- M/S Urmila Oil Industries

Respondent :- U.P. Dakshiranchal Vidut Vitran Nigam & Ors.

Petitioner Counsel :- Bhoopendra Nath Singh, Ganga Ram Gupta

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Shiva Kirti Singh, Acting Chief Justice

Hon'ble Dilip Gupta, J.

Nobody appears on behalf of the petitioners to press this petition. It appears that either the petitioners have lost interest in the matter or the issue has become infructuous.

In that view of the matter, the writ petition is dismissed as infructuous.

Order Date :- 19.12.2012

NSC

Chief Justice's Court

Civil Misc. Restoration Application No.15490 of 2013

In re :

Case :- WRIT - C No. - 60272 of 2005

Petitioner :- M/S Urmila Oil Industries

Respondent :- U.P. Dakshiranchal Vidut Vitran Nigam & Ors.

Petitioner Counsel :- Bhoopendra Nath Singh, Ganga Ram Gupta

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Shiva Kirti Singh, Chief Justice

Hon'ble Dilip Gupta, J.

Heard the parties in respect of this restoration application.

For the reasons mentioned in this application, the order dismissing writ petition no.60272 of 2005 on 19.12.2012 is recalled and the writ petition is restored to its original file. As a result, the interim order in that writ petition shall revive.

Order Date :- 5.2.2013

VMA

Chief Justice's Court

Case :- WRIT - C No. - 60272 of 2005

Hon'ble Shiva Kirti Singh, Chief Justice

Hon'ble Dilip Gupta, J.

Restored.

For orders, see order of date passed on Civil Misc. Restoration Application No.15490 of 2013.

Order Date :- 5.2.2013

VMA

Chief Justice's Court

Case :- WRIT - C No. - 60272 of 2005

Petitioner :- M/S Urmila Oil Industries

Respondent :- U.P. Dakshiranchal Vidut Vitran Nigam & Ors.

Petitioner Counsel :- Bhoopendra Nath Singh, Ganga Ram Gupta

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Shiva Kirti Singh, Chief Justice

Hon'ble Dilip Gupta, J.

Let the name of Mr. Amrit Lal Yadav appear in the list as counsel for the respondents.

Order Date :- 6.3.2013

NSC

Court No. - 34

Case :- WRIT - C No. - 60272 of 2005

Petitioner :- M/S Urmila Oil Industries

Respondent :- U.P. Dakshiranchal Vidut Vitran Nigam And Ors.

Counsel for Petitioner :- Bhoopendra Nath Singh, Deepak Saxena, Ganga Ram Gupta

Counsel for Respondent :- W.H. Khan, Amrit Lal Yadav, S.C., Shrawan Kumar Tripathi

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajeev Misra, J.

1. Called in revise. None appeared.
2. Bench Secretary has placed a letter dated 14.08.2019 of High Court Bar Association, Allahabad before us wherein it has been requested that Bar Association has resolved to abstain from judicial work and, therefore, no adverse order be passed in the matters listed today. The copy of aforesaid letter has been circulated under the instruction of Hon'ble the Chief Justice making endorsement "Be circulated".
3. Considering aforesaid request and spirit of endorsement made by Hon'ble the Chief Justice, we are deferring this matter.
4. List in next cause list.

Order Date :- 14.8.2019

Siddhant Sahu

Court No. - 34

Case :- WRIT - C No. - 60272 of 2005

Petitioner :- M/S Urmila Oil Industries

Respondent :- U.P. Dakshiranchal Vidut Vitran Nigam And Ors.

Counsel for Petitioner :- Bhoopendra Nath Singh, Deepak

Saxena, Ganga Ram Gupta, Amit Kumar Mishra

Counsel for Respondent :- W.H. Khan, Amrit Lal

Yadav, S.C., Shrawan Kumar Tripathi

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajeev Misra, J.

1. Sri Amit Kumar Mishra, learned counsel for petitioner is present. None appeared on behalf of respondents though the case has been called in revise, hence, we proceed to decide writ petition ex parte after hearing counsel for petitioner.

2. It is contended that impugned notice has been issued to petitioner raising demand of Rs.21,84,484/- though no proceedings in accordance with Section 126 of Electricity Act, 2003 (*hereinafter referred to as "Act, 2003"*) read with Clause 6.8 of Electricity Supply Code, 2005 (*hereinafter referred to as "Code"*) has been conducted and there is complete non compliance of aforesaid provision as also law laid down by a Division Bench of this Court in **Ashok Kumar and others Vs. State of U.P. and others 2008 (6) ADJ 660.**

3. The impugned notice dated 17.05.2005 reads as under :

“उपरोक्त विषयक के सम्बन्ध में आपको आवगत कराना है कि अधिशासी अभियन्ता परीक्षण खण्ड कमला नगर, आगरा के पत्र सं० 728/एमआरआई दिनांक 5.5.05 के अनुसार उनके द्वारा अमआरआई के विश्लेषण करने के बाद निम्न तथ्य आये हैं।

1. 27.07.03 से 25.2.04 तक रात्रि में विद्युत भार शून्य

2. 15.08.04 से 25.10.04 --- तदैव ---

3. 15.10.04 से 26.11.04 तक --- तदैव---

आपके यहाँ जो सिस्टम है, उससे विद्युत की सीधी चोरी की सम्भावना रही है, अतः उक्त आधार पर राजस्व निर्धारण अपेक्षित है, उक्त के सम्बन्ध में यदि आपको कुछ कहना है तो इस पत्र की प्राप्ति के 15

दिन के अन्दर अपना पक्ष प्रस्तुत करें, अन्यथा की स्थिति में अग्रिम कार्यवाही कर दी जायेगी।”

“On the aforementioned subject, this is to inform you that as per the letter no. 728/MRI dated 05.05.2005 of the Executive Engineer, Transmission Division, Kamla Nagar, Agra, the following facts have come out after the analyses of the MRI done by him:

1. Power load from 27.07.2003 to 25.02.2004 at night - zero
2. Power load from 15.08.2004 to 25.10.2004 --- do ---
3. Power load from 15.10.2004 to 26.11.2004 --- do ---

Through the system at your place, **direct power pilferage is possible**; hence, on the aforesaid basis, the revenue assessment is required. If you have to say anything in the respect of aforesaid, kindly come out with your stand within 15 days after the receipt of this letter; otherwise, further proceeding shall be initiated.” (English Translation by Court)

(Emphasis added)

4. Petitioner submitted reply dated 09.06.2005 (Annexure 6 to the writ petition) stating as under :

“उपरोक्त आपके पत्र के सन्दर्भ में सूचित करना है कि हमारे प्रतिष्ठान / ईकाई की प्रतिमाह रीडिंग / एम0आर0आई0 सक्षम क्षेत्रीय अधिकारियों द्वारा होती रही है एवं आपके एवं अन्य उच्च अधिकारियों द्वारा आकस्मिक निरीक्षण भी किये जाते रहे हैं। उस दौरान यदि कोई कमी होती है तो उसी समय इंगित करना चाहिए था किन्तु खेद के साथ लिखना पड़ रहा है कि परीक्षण खण्ड द्वारा एक साथ 18 माह की एम0आर0आई0 में केवल रात्रि में विद्युत भार शून्य रहा दर्शाया गया है जबकि अन्य अनियमिततायें कोई नहीं हैं। रात्रि में विद्युत प्रयोग न करने पर निर्धारित आपेक्षित करना न्याय संगत नहीं है जबकि हमारी दृष्टि में विद्युत की बचत एक राष्ट्रीय समुह (सम्पदा) की बचत है।

चूँकि उपरोक्त सन्दर्भित समय में भार शून्य रहने के कारण मात्र रात्रि में मिल में कोई उत्पादन न होने के कारण प्रतिष्ठान में लगा ट्रांसफार्मर की विद्युत आपूर्ति हमारे डवलपोल पर लगे टी0पी0एम0ओ0 द्वारा काट दी जाती रही है जिसका मूल कारण सम्भावित दुर्घटना से बचा सके। क्योंकि उपरोक्त सिस्टम नया भार मीटर लगाते समय लगाया गया था। अर्थात् विद्युत चोरी करने का प्रश्न ही नहीं उठता।”

“With reference to your aforesaid letter, it is to inform that monthly reading/MRI of the establishment/unit is taken by competent regional officers. Accidental inspection have also been done by you and other higher officers. Had any deficiency been found at that time, you should have pointed out the same then only but I am sorry to say that power load has been shown nil by the Parikshan Khand for nights only in the MRI constantly for 18 months whereas no further irregularities have been pointed out. It is not justifiable to subject it to fixed costs on account of not using the electricity during nights, whereas in our opinion, saving of electricity is a saving of national property.

No power load at the time as referred above, was due to disconnection of the electricity of the transformer installed at the establishment by the TPMO at our double pole during nights only, that too, on account of no production. Such disconnection was intended, mainly, to avert likelihood of any accident and because the new system was put in place at the time of installation of new load meter. Hence, there arises no question of power theft.” (English Translation by Court)

5. Thereafter Assessing Officer i.e. Executive Engineer rejected said reply vide order dated 28.06.2005 and said that assessment on the basis of MRI report is being proposed and proceedings are being initiated accordingly. Order dated 28.6.2005 passed by Executive Engineer reads as under :

“उपरोक्त विषयक अपने पत्र दिनांक 9.06.05 का अवलोकन करें, इस सम्बन्ध में यह कहना है कि आपके द्वारा यह कहना कि रात्रि के समय विद्युत का प्रयोग न करने के कारण परिवर्तक पर लगे टी0पी0एम0ओ0 द्वारा विद्युत आपूर्ति काटे जाने के कारण है, जो कि औचित्यपूर्ण प्रतीत नहीं होता। आपके परिसर पर मीटर एवं परिवर्तक के बीच में जो टी0पी0एम0ओ0 लगा था वह वांछित था वह इस डबल पोल के माध्यम से केबिल सीधे डालकर आपके द्वारा विद्युत की चोरी की गयी थी यही एक कारण है कि रात्रि के समय प्रायः भार शून्य अंकित पाया गया है।

अतः एम0 आर0 आई0 रिपोर्ट के आधार पर आप पर राजस्व निर्धारण वांछित है, जिसे निर्गत करने की प्रक्रिया प्रारम्भ की जा रही है।”

“Kindly peruse your letter dated 09.06.05 regarding the above-mentioned subject. In this respect, this is to say that the reason given by you for not using electricity at night is the disconnection of power supply through TPMO on the transformer; **which does not seem to be justifiable**. The TPMO placed between the meter and transformer on your campus was required. The power theft was committed by putting the cable directly through these double poles. This is the reason that the load is usually detected zero at night.

So, based on the MRI report, assessment of revenue on you is required, the process for which is being initiated.”

(English Translation by Court)
(Emphasis added)

6. Then an assessment order and demand notice was issued on 27.7.2005 stating as under :

“उपरोक्त विषय में आपको अवगत कराना है कि अधिशासी अभियंता विद्युत परीक्षण खण्ड, कमला नगर, आगरा ने अपने पत्र सं० 728/वि०पं०ख०आ०/एम०आर०आई० दिनांक 5.5.05 के द्वारा अवगत कराया है कि एम०आर०आई० रिपोर्ट का विश्लेषण करने के उपरांत आपके यहाँ दिनांक 27.07.2003 से 25.02.04 तक, दिनांक 15.8.04 से 25.10.04 तक एवं दिनांक 25.10.04 से 26.11.04 तक रात्रि में 12 बजे से प्रातः 7-8 बजे तक भार शून्य रहता है। जिसमें आपके यहाँ जो सिस्टम बनाया गया है, उससे विद्युत की सीधी चोरी की संभावना रही है। आपके यहाँ उच्च अधिकारियों के द्वारा दिनांक 03.11.04 को निरीक्षण किया गया तो माह 11/04 एवं 12/04 में रात्रि में भी मॉग रिकार्ड की गयी। उच्च अधिकारियों द्वारा किये गये निरीक्षण के बाद उपयोग में काफी बढ़ोत्तरी रिकार्ड की गयी जिसका विवरण निम्न है:-

उच्च अधिकारियों के निरीक्षण से पूर्व के माह	उच्च अधिकारियों के निरीक्षण से पूर्व का उपभोग (केवीएएच)	उच्च अधिकारियों के निरीक्षण के बाद के माह	उच्च अधिकारियों के निरीक्षण के बाद का उपभोग (केवीएएच)
सितम्बर 04 अक्टुबर 04	15603 13856	नवम्बर 04 दिसम्बर 04	34333 46276

इससे स्पष्ट है कि आपके द्वारा मीटर वाईपास कर सीधे विद्युत का प्रयोग किया गया। इस सम्बन्ध में उपमहाप्रबंधक विद्युत वितरण मण्डल, आगरा ने भी कार्यालय पत्रांक 3859 /विविमआ/दिनांक 10.05.05, 4797 दिनांक 13.06.05 एवं पत्रांक 5697 दिनांक 13.07.05 के द्वारा आप पर राजस्व

निर्धारण के लिए निर्देशित किया है। इस सम्बन्ध में इस कार्यालय के पत्रांक 4543/विविखद्वि/आ/दिनांक 17.05.05 के द्वारा आपको नोटिस के माध्यम से उक्त अनियमितता के बारे में स्पष्टीकरण मांगा गया था। आपके द्वारा जो स्पष्टीकरण दिनांक 9.6.05 के द्वारा प्रस्तुत किया वह असंतोषजनक, अतर्क संगत एवं आधारहीन होने के कारण इस कार्यालय के पत्रांक 5847 दिनांक 28.06.05 के द्वारा निरस्त कर दिया गया। आपके यहाँ मीटर एवं परिवर्तक के बीच में जो टी0पी0एम0ओ0 लगा था वह अवोछित था आपको यह भी अवगत कराना है कि आपने अपने प्रत्यावेदन में अवगत कराया है कि रात्रि में अपने विद्युत का प्रयोग नहीं किया है। जो कि औचित्यपूर्ण नहीं है क्योंकि यदि किसी उपभोक्ता के यहाँ विद्युत संयोजन पर विद्युत आपूर्ति की उपलब्धता होने की दशा में वह कम से कम अपने परिसर पर प्रकाश एवं सुरक्षा हेतु विद्युत का न्यूनतम प्रयोग अनिवार्यता करेगा। निरीक्षण के उपरान्त आपके संयोजन पर रात्रि में भी उपभोग आया है, जो कि एम0आर0आई0 रिपोर्ट से स्पष्ट है।

अतः उपरोक्त अनियमितता, एम0आर0 आई0 रिपोर्ट एवं उसके विश्लेषण एवं उपरोक्त तथ्यों के आधार पर विद्युत वितरण संहिता 2005 में दिये गये प्रावधानों के अनुसार इलैक्टिसिटी एक्ट की धारा 126 के अन्तर्गत किये गये राजस्व निर्धारण बिल रू0 2184484/- (इक्कीस लाख चौरासी हजार चार सौ चौरासी मात्र) की प्रति इस आशय से संलग्न है, कि आप इस धनराशि का भुगतान इस पत्र के निर्गत होने के 15 दिन के अन्दर इस कार्यालय में करना सुनिश्चित करें, अन्यथा की स्थिति में कनेक्शन विच्छेदन एवं राजस्व वसूली की अग्रिम कार्यवाही कर दी जायेगी।”

“In connection with the aforesaid subject, it is to inform you that the Executive Engineer, Vidyut Parikshan Khand, Kamla Nagar, Agra has vide its letter no. 728/VPKA/MRI, dated 05.05.2005 informed that after analysing the MRI report, it was found that your **load has been nil from 00 hours in the midnight to 7-8 o'clock in the morning from 27.07.2003 to 25.02.2004, from 15.08.2004 to 25.10.2004 and from 25.10.2004 to 26.11.2004. You have developed a system which has given rise to direct theft of electricity.** On 03.11.2004, an inspection was carried out by the higher officers at your place, demand was recorded even on the intervening night of 11/04 and 12/04. After the inspection by the higher officers, sufficient increase in the consumption was recorded, details whereof are below:

<i>Name of month prior to the inspection by higher officers</i>	<i>Consumption (KVAH) before inspection by higher officers</i>	<i>Name of month after inspection by higher officers</i>	<i>Consumption (KVAH) after inspection by higher officers</i>
<i>Sept. 04</i>	<i>15603</i>	<i>November 04</i>	<i>34333</i>
<i>October 04</i>	<i>13856</i>	<i>December 04</i>	<i>46276</i>

From this, it is clear that electricity has been used by you directly by bypassing the meter. In this connection, the Deputy General Manager, Vidyut Vitran Mandal, Agra has, vide its office letter nos. 3859/Vi.Vi.M.Aa/dated 10.05.2005, 4797 dated 13.06.2005 and 5697 dated 13.07.2005, directed a revenue assessment on you. In this connection, an explanation with regard to the said irregularity had been sought from you by way of a notice vide this office's letter no. 4543/ViViKhaDwi/Aa/dated 17.05.2005. The explanation dated 09.06.2005 submitted by you was rejected vide this office's letter no. 5847 dated 28.06.2005 finding the same to be unsatisfactory and illogical. The TPMO installed at your house between the meter and transformer was unwanted. It is also to inform you that you have in your representation mentioned that you did not use the electricity during the nights, which is not justified because in case of an electricity connection at any consumer's place and availability of electricity there, he will necessarily use minimum electricity atleast for purpose of light and security at his premises. After the inspection, consumption has been recorded in your connection during the night as well, which is evident from the MRI report.

Hence, in view of the aforesaid irregularity, MRI report and its analysis and on the basis of the aforesaid facts, a copy of the bill amounting to Rs. 21,84,484/- (Rupees Twenty-one lakh eighty-four thousand four hundred eighty-four) for the revenue assessed u/s 126 of The Electricity Act as per the provisions of Electricity Supply Code, 2005, is enclosed asking you to pay the said amount to this office within 15 days from the date of issuance of this letter. In case of default, further proceedings shall be held for power disconnection and for

realisation of the revenue.” (English Translation by Court)
(Emphasis added)

7. The enclosed assessment is Annexure 4 to the writ petition, which made assessment for 27 days taking average consumption 1646 Kvah per day and giving break up of assessment.

8. It is contended that on the basis of “possibility of theft” of electrical energy, assessment has been made and that too without following procedure provided in Clause 6.8 of the Code as also law laid down by this Court in **Ashok Kumar and others (supra)**.

9. It is evident that only on the basis of possibility, some demand alleging to be assessment amount is sought to be made but neither any specific reason has been given as to how authorities prima facie came to conclusion that there was theft of electricity nor in what manner assessment has been made is stated nor any show cause notice as contemplated under Clause 6.8 of Code, 2005 was given to petitioner. Apparently, we find that impugned demand has not complied with the procedure prescribed in Section 126 read with Clause 6.8 of Code as also the law laid down in **Ashok Kumar and others (supra)**. Hence impugned order cannot be sustained.

10. Writ petition is allowed. Impugned orders dated 17.05.2005 and 27.07.2005 are hereby set aside. However, this order shall not preclude respondents Competent Authority i.e. Assessing Authority from passing fresh order in accordance with law.

Order Date :- 7.11.2019
KA